



CHAPTER 31.

An Act to continue until the thirty-first day of A.D. 1937.
March, nineteen hundred and thirty-nine, the
Special Areas (Development and Improvement)
Act, 1934, and to enable further assistance to be
given to the areas specified in the First Schedule
to that Act, and to certain other areas.

[6th May 1937.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1. The Special Areas (Development and Improve-
ment) Act, 1934 (hereinafter referred to as "the principal
Act"), which by the Expiring Laws Continuance Act,
1936, is limited to expire on the thirty-first day of May,
nineteen hundred and thirty-seven, shall continue in
force until the expiration of this Act.

Continua-
tion of
25 & 26
Geo. 5. c. 1.
1 Edw. 8. &
1 Geo. 6.
c. 4.

2. For the purpose of inducing persons to establish
an industrial undertaking in any of the areas specified in
the First Schedule to the principal Act (hereinafter
referred to as "special areas") the Commissioners may,
notwithstanding that the undertaking will be carried on
for the purpose of gain, let a factory in any such area
for the purpose of its being occupied as such by the
undertaking :

Power of
Commis-
sioners to let
factories.

A.D. 1937. — Provided that the rent reserved by any lease granted under this section shall be such as, in the opinion of the Commissioner, will produce a return as nearly as may be equivalent to a reasonable rate of interest on the sums expended by him in providing the factory.

Financial assistance for new undertakings in special areas.

3.—(1) For the purpose of inducing persons to establish an industrial undertaking in any of the special areas, the Commissioners may agree to provide to the persons who will carry on any industrial undertaking to be established in a place approved by the Commissioners within such an area, financial assistance by means of contributions towards any sums payable in respect of the undertaking by way of rent, income-tax, or rates, notwithstanding that the undertaking is carried on for the purpose of gain.

(2) Contributions shall not be made in pursuance of any agreement made under this section towards any sums payable by way of rent, income-tax or rates in respect of a period later than five years after the date of the agreement.

Contribution by Commissioners to road and drainage expenses in special areas.

4.—(1) The Commissioners may, notwithstanding the provisions of subsection (5) of section one of the principal Act, make a grant towards any expenses incurred by a local authority in the repair or improvement of streets in any special area, which are certified by the Minister of Transport as being wholly or mainly required for purposes other than those of through traffic.

(2) The Commissioners may contribute towards any expenses incurred by owners or occupiers of agricultural land in any special area in connection with the execution of works of field drainage for such land, notwithstanding that the land is occupied for the purpose of gain.

Financial assistance for provision of factories in certain other areas.

5.—(1) If a site-company is incorporated for the purpose of providing factories in any area to which this section applies, with a view to inducing persons to establish industrial undertakings in the area, the Treasury may, in accordance with recommendations of an advisory committee appointed by them, provide financial assistance to the company either by subscription to the share capital of the company or by way of loan :

Provided that the financial assistance so provided to any company shall not exceed an amount equal to one-

third of the share capital of the company which is for the time being paid up exclusive of any share capital held by the Treasury. A.D. 1937.

(2) If the Minister of Labour, upon representations made to him, is satisfied as respects any area, not being or forming part of a special area—

- (a) that there is, and has been for a considerable time, severe unemployment in the area;
- (b) that, unless financial assistance is provided under this section to a site-company which will operate in the area, there will be no immediate likelihood of a substantial increase in employment in the area; and
- (c) that employment in the area is mainly dependent on one or more industries which are unable to provide sufficient employment by reason of general depression in those industries;

he may direct that this section shall apply to the area :

Provided that the Minister of Labour shall appoint an advisory committee to whom he may refer any representations made to him under this section, and shall not direct that this section shall apply to any area unless the committee after considering, in accordance with any instructions given by him, the circumstances affecting the area, recommend that this section should apply to the area.

(3) Any sums required for the provision of financial assistance under this section shall be paid out of moneys provided by Parliament, and any sums received by the Treasury in respect of share capital subscribed for, or loans made, by them under this section shall be paid into the Exchequer.

6.—(1) The Treasury may, in accordance with recommendations of the committee appointed by them under the last foregoing section, provide financial assistance by way of loan—

- (a) to the persons carrying on any industrial undertaking which, after the passing of this Act, becomes established in any special area; or
- (b) to the persons carrying on any industrial undertaking which, after the passing of this Act,

Provision by the Treasury of financial assistance to certain new undertakings in special and other areas.

A.D. 1937.
—

becomes established in any area to which the last foregoing section applies and occupies a factory which has been provided by a site-company.

(2) Any sums required for the provision of financial assistance under this section shall be paid out of moneys provided by Parliament and any sums received by the Treasury in respect of loans made by them under this section shall be paid into the Exchequer:

Provided that the sums so paid shall not in the aggregate exceed two million pounds.

Interpreta-
tion.

7. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

20 & 21
Geo. 5. c. 44.

“Agricultural land” has the same meaning as it has for the purposes of Part IV of the Land Drainage Act, 1930;

“Factory” means premises suitable for occupation as a factory or workshop as defined by the Factory and Workshop Acts, 1901 to 1920, and means also a site for such premises;

“Field drainage” includes the drainage of moor land;

18 & 19
Geo. 5. c. 44.

“Industrial undertaking” means an undertaking of such a character that the factory occupied or to be occupied for the purposes of carrying on the undertaking is or will be an industrial hereditament as defined by the Rating and Valuation (Apportionment) Act, 1928, but does not include any undertaking in which less than ten persons are likely to be employed in normal circumstances;

“Share capital” includes stock not being debenture stock;

“Site-company” means any body corporate established for the purpose specified in subsection (1) of section five of this Act, being a body which does not trade for profit, or a body whereof the constitution forbids the payment of any interest or dividend at a rate exceeding such rate as may be for the time being prescribed by the Treasury.

8. In the application of this Act to Scotland—

A.D. 1937.

(a) the expression “ agricultural land ” has the meaning assigned to it in the Land Drainage (Scotland) Act, 1930;

Application to Scotland.

20 & 21
Geo. 5. c. 20.

(b) for any reference to an industrial hereditament as defined by the Rating and Valuation (Apportionment) Act, 1928, there shall be substituted a reference to industrial lands and heritages as defined by the said Act as amended by section forty-six of the Local Government (Scotland) Act, 1929.

19 & 20
Geo. 5. c. 25.

9. This Act shall continue in operation until the thirty-first day of March, nineteen hundred and thirty-nine, and no longer unless Parliament otherwise determines :

Duration of Act.

Provided that the expiry of this Act shall not affect—

(a) the previous duration thereof or anything duly done or suffered thereunder; or

(b) any right, privilege, obligation or liability acquired, accrued or incurred thereunder; or

(c) any legal proceeding, arbitration, remedy or investigation in respect of such right, privilege, obligation or liability as aforesaid;

and any such legal proceeding, arbitration, remedy, or investigation may be instituted, enforced, or continued as if this Act had not expired.

10. This Act may be cited as the Special Areas (Amendment) Act, 1937, and shall be construed as one with the Special Areas (Development and Improvement) Act, 1934, and this Act and that Act may be cited together as the Special Areas (Development and Improvement) Acts, 1934 and 1937.

Short title, construction and citation.

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